

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 07/22/2026

Case #	Case Name	Tentative
01462399	Heller – Trust	TENTATIVE RULING Case: Heller – Trust 01462399 Calendar No.: 2 Date: 07/22/2026 MOTION FOR OSC RE SANCTIONS (ROAs 51, 55, 59, and 63) Petitioner Justin Word ("Petitioner") moves for an order to set an Order to Show Cause Re: Sanctions and Improper Filings. Petitioner further seeks orders striking three Objections filed by Respondents Keith Dail and Robin Dail ("Respondents"); directing the court clerk to not accept future filings from Respondents; and imposing monetary sanctions to deter further misuse of the court's time and resources. <u>Procedural Issues Concerning the Instant Motion</u> It seems Petitioner has filed the same motion four times, as ROAs 51, 55, 59, and 63 appear to be identical. Likewise, the points and authorities (ROAs 42 and 46) and the declarations (ROAs 44 and 49) filed in support of the motion appear to be identical. Counsel should advise the court if these were meant to be separate filings. The court notes that Petitioner filed a Reply (ROA 117) under the assumption that Respondents intended their "Motion to Withdraw" (ROA 113) to be an opposition to the instant motion. For purposes of this motion, the court disregards the Respondents' Motion to Withdraw (ROA 113) and, therefore, disregards the Reply (ROA 117).

Motion for Sanctions

Regardless of whether sanctions are requested by motion of a party, by the court on its own motion, or by an Order to Show Cause set by the court, there must be a statutory basis for imposing sanctions.

Sanctions Per CCP §§ 128.5 and 128.7

Petitioner asserts that sanctions should be imposed pursuant to Code of Civil Procedure sections 128.5 and 128.7 as a result of Respondents' "repeated filing of improper, noncompliant, and procedurally defective objections, more specifically: (1) the April 23, 2025 'Objection' (the 'April Objection'); (2) the July 7, 2025 'Objection' (the 'July Objection'); and (3) the October 22, 2025 'Objection' (the 'October Objection') (collectively the 'Objections')." (ROA 51, Mot. 2:1-4.)

Petitioner's request for sanctions pursuant to Code of Civil Procedure sections 128.5 and 128.7 must be denied for two separately sufficient reasons.

First, motions made pursuant to either Section 128.5 or Section 128.7 must be made separately from all other motions. (Code Civ. Proc. §§ 128.5(f)(1)(A) and 128.7(c)(1).)

Second, both statutes contain safe harbor provisions. Subdivision (f)(1)(B) of Section 128.5 and subdivision (c)(1) of Section 128.7 require a 21-day period during which a party who is served with a motion for sanctions may avoid sanctions by withdrawing the challenged pleading.

Strict compliance with the safe harbor requirement is a necessary precursor to a motion for sanctions under Sections 128.5 and 128.7. Its absence subjects any order granting a motion to reversal. (*Galleria Plus, Inc. v. Hanmi Bank* ("Galleria") (2009) 179 Cal.App.4th 535, 538; see *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 698-700 [noncompliance with Section 128.7(c)(1) may be raised for first time on appeal in appropriate situation].) Because compliance with the safe harbor is a prerequisite to recovering sanctions, the burden is on the party seeking the sanctions to ensure the full safe harbor is provided. (*Li v. Majestic Industry Hills, LLC* (2009) 177 Cal.App.4th 585, 594.)

Here, there is no evidence that Petitioner complied with the safe harbor requirements.

Sanctions pursuant to sections 128.5 and 128.7 may be sought by a party via motion or by the court on its own motion. Either way, the party to be sanctioned must be afforded the 21-day safe harbor period within which to correct or withdraw the offending document. (*Li v. Majestic Industry Hills LLC* (2009) 177 Cal.App.4th 585, 591, Fn. 4.) Asking the court to set an Order to Show Cause to impose sanctions does not obviate the need to comply with the safe harbor provision.

Sanctions Per CCP § 177.5

Petitioner further argues that Respondents should be sanctioned for the filing of defective Objections pursuant to Code of Civil Procedure section 177.5.

Code of Civil Procedure section 177.5 states in relevant part, as follows:

A judicial officer shall have the power to impose reasonable money sanctions, not to exceed fifteen hundred dollars (\$1,500), notwithstanding any other provision of law, payable to the court, for any **violation of a lawful court order** by a person, done without good cause or substantial justification. This power shall not apply to advocacy of counsel before the court. For the purposes of this section, the term "person" includes a witness, a party, a party's attorney, or both.

(Emphasis added.)

Petitioner claims that Respondents violated the court's 7/28/25 Order to file an Objection that complies with the Probate Code by filing the October Objection that was not Code-compliant.

However, the 7/28/25 Minute Order does not order Respondents to file a Code-compliant Objection. It states, "Court notes Objection will require verification and affirmative request for relieve present in Objection will not be considered." (ROA 34.) The court also referred Respondents to self-help resources. Thus, the 7/28/25 Minute Order reflects that the court merely noted the procedural deficiencies with the then-pending Objection. The only orders made were for the parties to meet and confer regarding any objections. (Id.)

The court is not persuaded that it should impose sanctions on Respondents pursuant to Code of Civil Procedure section 177.5.

Sanctions Per CRC, Rule 2.30

Finally, Petitioner seeks sanctions pursuant to California Rules of Court, Rule 2.30.

Rule 2.30 is only applicable to violations of the California Rules of Court. (CRC, Rule 2.30(a) and (b).) It is not applicable to violations of statutory procedure.

Subdivision (c) of Rule 2.30 states in relevant part:

A party's motion for sanctions must (1) **state the applicable rule that has been violated**, (2) describe the specific conduct that is alleged to have violated the rule, and (3) identify the attorney, law firm, party, witness, or other person against whom sanctions are sought. The court on its own motion may issue an order to show cause that must (1) state the applicable rule that has been violated, (2) describe the specific conduct that appears to have violated the rule, and (3) direct the attorney, law firm, party, witness, or other person to show cause why sanctions should not be imposed against them for violation of the rule.

(Emphasis added.)

Here, the only California Rule of Court that Petitioner claims Respondents violated is Rule 7.51. (ROA 51, Mot., 2:5-7.) Rule 7.51 governs the service of a Notice of Hearing. The Respondents were not required to serve a Notice of Hearing with the Objections. (Prob. Code § 17203.)

The failure to verify the Objections is a violation of Probate Code section 1021(a)(2). The failure to serve counsel with the Objections is a violation of Code of Civil Procedure section 465. These are not violations of the California Rules of Court and thus sanctions are not recoverable under Rule 2.30.

Other Requests

Petitioner further requests that the court issue orders striking the Objections and directing the court clerk not to accept future filings of Respondents.

A motion to strike an improper pleading must be made pursuant to Code of Civil Procedure section 436.

		A motion for a prefiling order must be made pursuant to Code of Civil Procedure section 391.7. For reasons stated above, the entirety of this motion is DENIED as procedurally defective. Counsel for Petitioner is ordered to give notice.
01359872	Yale – Trust	TENTATIVE RULING Case: Yale – Trust 01359872 Calendar No.: 4 Date: 07/22/2026 MOTION TO COMPEL (ROA 371) Petitioner Douglas Yale ("Petitioner"), in propria persona, moves for an order compelling third party Bank of America, N.A. ("BANA") to comply with a deposition subpoena. In opposition, BANA states that the Notices to Consumer did not indicate that the proper consumer had been served because the Trustee was only named as an individual. Once BANA confirmed with Petitioner that the proper consumer had been served, it complied with the subpoena by producing documents on 7/8/26. (ROA 466.) The court's records do not reflect that Petitioner has met and conferred regarding the production, and no updated separate statement has been filed. Based on the foregoing, the motion is DENIED as moot. If Petitioner is unsatisfied with the production, he must meet and confer and file a new motion. Petitioner is ordered to give notice of this ruling on BANA and on all parties who have appeared in this action.
01483366	Aaron – Trust	TENTATIVE RULING Case: Aaron – Trust 01483366 Calendar No.: 5 Date: 07/22/2026 MOTION FOR ORDER APPROVING AMENDED LIS PENDENS (ROA 168)

		On 11/13/25, Scot Williams ("Scot"), in propria persona, filed this motion for court approval of the filing of an amended notice of pendency of action. (ROA 168.) In Opposition to this motion, Ryan Williams ("Ryan") informs the court that the subject property was sold on 2/4/26 with Scot's approval. (ROA 450.) In Reply, Scot argues that the court can still grant or deny the request. (ROA 452.) On the contrary, the court cannot grant the request to approve the recording of a lis pendens against a property that is no longer subject to the instant probate proceeding, as there is no longer a "real property claim" pending. (Code Civ. Proc. § 405.21.) Thus, the motion is DENIED as moot. Ryan requests sanctions pursuant to Code of Civil Procedure 128.5. While the court agrees that this motion could have been withdrawn to save the parties and the court time and resources, Ryan's request for sanctions must be denied. First, requests for sanctions pursuant to Section 128.5 must be made by a motion separate from all other motions. (Code Civ. Proc. § 128.5(f)(1)(A).) Second, Section 128.5 requires a 21-day period during which a party who is served with a motion for sanctions may avoid sanctions by withdrawing the challenged pleading. (Code. Civ. Proc. § 128.5(f)(1)(B).) There is no evidence that Ryan complied with the 21-day safe harbor provision. Finally, the court notes that sanctions pursuant to Code of Civil Procedural 128.5 may have likely been denied on the merits, as well, since the underlying motion was meritorious when filed. Scot is ordered to serve notice of this ruling. [Motion Type]
01350410	Ronglien – Probate	TENTATIVE RULING Case: Ronglien – Probate 01350410

Calendar No.: 8

Date: 07/22/2026

MOTION TO BE RELIEVED AS COUNSEL (ROA 70)

Attorney Clark E. Selters seeks to be relieved as counsel for Administrator Marie Ronglien.

An attorney's right to withdraw as counsel is conditioned upon compliance with California Rules of Court, Rule 3.1362 and, where applicable, Orange County Local Rule 601.21.

California Rules of Court, Rule 3.1362 requires that three mandatory forms (i.e., MC-051, MC-052, and MC-053) be filed and served on the client and on all other parties who have appeared in the action. There is no proof of service filed in connection with this motion, but the Declaration (MC-052) indicates the motion papers were served at the client's last known address, and the court's records reflect that no other party has appeared in this action.

Counsel has not complied with Orange County Local Rule 601.21, which provides as follows: "If an attorney wishes to withdraw from a probate proceeding as attorney of record for the estate representative or any other fiduciary, in addition to the requirements under CCP 284 and CRC 3.1362, the attorney must have a citation issued and served on such motion or petition directing the representative to appear before the court to show cause why the motion or petition should not be granted or why the representative has not taken the steps to complete his or her duties."

The client is the Administrator of the estate. Though she is suspended, she still owes fiduciary duties to the estate. The court's records do not reflect that a citation was issued to the client. Counsel must file a Citation – Probate (DE-122/GC-322). Once the citation is signed by the court, counsel must have it served on the client in the same manner as a summons. (See Code Civ. Proc. § 415.10.)

If the client can be found, she must be served with a citation. If the client cannot be found, then the court might order counsel to prepare a final accounting. (Prob. Code § 10953(c).) Either way, counsel cannot be relieved at this time.

This motion is CONTINUED to 9/9/26 at 1:30 PM in Dept. CM07.

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